

Federal Constitution

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Art. 153—(*cont.*)

Clause (2): See Art. 161A(1) & (2).

Clauses (3), (4) & (5): See Art. 161A(1).

Clauses (1), (2), (3), (6) & (8)

- a. The words “and natives of any of the Borneo States” were inserted after the word “Malays” by Act A30, paragraph 6(a), in force from 10-03-1971.
- b. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Sarawak as the Yang di-Pertuan Agong may deem reasonable; and the authority shall duly comply with the directions.

(7) Nothing in this Article shall operate to deprive or authorize the deprivation of any person of any right, privilege, permit or licence accrued to or enjoyed or held by him or to authorize a refusal to renew to any person any such permit or licence or a refusal to grant to the heirs, successors or assigns of a person any permit or licence when the renewal or grant might reasonably be expected in the ordinary course of events.

(8) Notwithstanding anything in this Constitution, where by any federal law any permit or licence is required for the operation of any trade or business, that law may provide for the reservation of a proportion of such permits or licences for Malays and natives of any of the States of Sabah and Sarawak; but no such law shall for the purpose of ensuring such a reservation—

- (a) deprive or authorize the deprivation of any person of any right, privilege, permit or licence accrued to or enjoyed or held by him; or
- (b) authorize a refusal to renew to any person any such permit or licence or a refusal to grant to the heirs, successors or assigns of any person any permit or licence when the renewal or grant might in accordance with the other provisions of the law reasonably be expected in the ordinary course of events, or prevent any person from transferring together with his business any transferable licence to operate that business; or
- (c) where no permit or licence was previously required for the operation of the trade or business, authorize a refusal to grant a permit or licence to any person for the operation of any trade or business which immediately before the coming into force of the law he had been *bona fide* carrying on, or authorize a refusal subsequently to renew to any such person any permit or licence, or a refusal to grant to the heirs, successors or assigns of any such person any such permit or licence when the renewal or grant might in accordance with the other provisions of that law reasonably be expected in the ordinary course of events.

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(8A) Notwithstanding anything in this Constitution, where in any University, College and other educational institution providing education after Malaysian Certificate of Education or its equivalent, the number of places offered by the authority responsible for the management of the University, College or such educational institution to candidates for any course of study is less than the number of candidates qualified for such places, it shall be lawful for the Yang di-Pertuan Agong by virtue of this Article to give such directions to the authority as may be required to ensure the reservation of such proportion of such places for Malays and natives of any of the States of Sabah and Sarawak as the Yang di-Pertuan Agong may deem reasonable; and the authority shall duly comply with the directions.

(9) Nothing in this Article shall empower Parliament to restrict business or trade solely for the purpose of reservations for Malays and natives of any of the States of Sabah and Sarawak.

(9A) In this Article the expression “natives” in relation to the State of Sabah or Sarawak shall have the meaning assigned to it in Article 161A.

(10) The Constitution of the State of any Ruler may make provision corresponding (with the necessary modifications) to the provisions of this Article.

Federal capital

154. (1) Until Parliament otherwise determines, the municipality of Kuala Lumpur shall be the federal capital.

(2) Notwithstanding anything in Part VI, Parliament shall have exclusive power to make laws with respect to the boundaries of the federal capital.

(3) (*Repealed*).

Commonwealth reciprocity

155. (1) Where the law in force in any other part of the Commonwealth confers upon citizens of the Federation any right or privilege it shall be lawful, notwithstanding anything in this Constitution, for Parliament to confer a similar right or privilege upon citizens of that part of the Commonwealth who are not citizens of the Federation.

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Art. 153—(cont.)

Clause (8A)

- a. Inserted by Act A30, paragraph 6(b), in force from 10-03-1971.
- b. The words “the State of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Clause (9)

- a. The words “and natives of any of the Borneo States” were inserted after the word “Malays” by Act A30, paragraph 6(a), in force from 10-03-1971.
- b. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Clause (9A)

- a. Inserted by Act A30, paragraph 6(c), in force from 10-03-1971.
- b. The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Art. 154

See Federal Capital Act 1960 [Act 190].

Clause (3)

Repealed by Act 10/1960, section 31, in force from 08-08-1960, which also deleted in Clause (2) the words “but subject to Clause (3)” which followed the words “Part VI”. The original Clause (3) read as follows:

“(3) In relation to the municipality of Kuala Lumpur, Clause (2) shall not apply until such date as may be appointed by the Yang di-Pertuan Agong with the concurrence of the Ruler of the State of Selangor in pursuance of arrangements made between the Federal Government and the Government of that State for the establishment elsewhere of the State capital; and until the date so appointed the Federal List shall have effect as if item (e) of section 6, and in item (h) of section 7 the words “rates in the federal capital”, were omitted.”.

(2) The reference in Clause (1) to citizens of a part of the Commonwealth shall be construed, in relation to the United Kingdom or to any other part of the Commonwealth not being a Commonwealth country or a territory administered by the Government of a Commonwealth country other than the United Kingdom, as a reference to citizens of the United Kingdom and Colonies.

(3) This Article applies in relation to the Republic of Ireland as it applies in relation to a Commonwealth country.

Contributions in aid of rates in respect of federal and State property

156. Where lands, buildings, or hereditaments are occupied for public purposes by or on behalf of the Federation, a State or a public authority, the Federation, State or public authority shall not be liable to pay local rates in respect thereof but shall in aid of those rates make such contributions in respect thereof as may be agreed between the Federation, State or public authority, as the case may be, and the authority levying the rates or as may in default of agreement be determined by a tribunal consisting of the chairman of the Lands Tribunal established under Article 87, who shall preside, and two other members of whom each of the parties concerned shall appoint one.

Delegation of State functions to another State

157. Subject to any provisions of State law, arrangements may be made between any two States for the performance of any functions by the authorities of the one on behalf of the authorities of the other, and such arrangements may provide for the making of payments in respect of any costs incurred under the arrangements.

158. (*Repealed*).

Amendment of the Constitution

159. (1) Subject to the following provisions of this Article and to Article 161E, the provisions of this Constitution may be amended by federal law.

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Art. 155

Clause (2)

The present Clause was substituted by Act 14/1962, section 32, in force from 01-10-1962, and replaced the original Clause which read as follows:

“(2) In this Article “part of the Commonwealth” means any Commonwealth country, any colony, protectorate or protected state, and any other territory administered by the Government of any Commonwealth country; and in relation to the United Kingdom and any other part of the Commonwealth (not being a Commonwealth country or a territory administered by the Government of a Commonwealth country other than the United Kingdom) the reference to citizens of that part shall be construed as a reference to citizens of the United Kingdom and Colonies.”.

Art. 158

1. Act 26/1963, section 70, in force from 16-09-1963, substituted the word “Brunei” for the words “any territory to which this Article applies” which appeared at the end of paragraphs (a), (b) and (c) of Clause (1) and repealed Clause (2) which read as follows:

“(2) This Article applies to Singapore, Sarawak, Brunei and North Borneo.”.

2. This Article was deleted by Act A704, section 11, in force from 10-06-1988 and read as follows:

“158. (1) Nothing in this Constitution shall be taken to prohibit the making or continuance of arrangement whereby—

- (a) departments, authorities or services are maintained by the Federal Government in common with the Government of Brunei; or
- (b) the Federal Government or any officer or authority thereof acts as agent for the Government of Brunei; or
- (c) any part of the executive authority of the Federation is exercised, with the consent of the Federation Government, by any officer or authority of the Government of Brunei.

(2) (*Repealed*).”.

Art. 159

See Art. 159A.

Clause (1)

- a. The words “and to Articles 161E and 161H” were inserted after the words “this Article” by Act 26/1963, section 70, in force from 16-09-1963.
- b. Act 59/1966, section 2, in force from 09-08-1965, substituted the words “and to Article 161E” for the words “and to Articles 161E and 161H”.

(2) (*Repealed*).

(3) A Bill for making any amendment to the Constitution (other than an amendment excepted from the provisions of this Clause) and a Bill for making any amendment to a law passed under Clause (4) of Article 10 shall not be passed in either House of Parliament unless it has been supported on Second and Third Readings by the votes of not less than two-thirds of the total number of members of that House.

(4) The following amendments are excepted from the provisions of Clause (3), that is to say:

- (a) any amendment to Part III of the Second or to the Sixth or Seventh Schedule;
- (b) any amendment incidental to or consequential on the exercise of any power to make law conferred on Parliament by any provision of this Constitution other than Articles 74 and 76;
- (bb) subject to Article 161E any amendment made for or in connection with the admission of any State to the Federation or its association with the States thereof, or any modification made as to the application of this Constitution to a State previously so admitted or associated;
- (c) any amendment consequential on an amendment made under paragraph (a).

(5) A law making an amendment to Clause (4) of Article 10, any law passed thereunder, the provisions of Part III, Article 38, Clause (4) of Article 63, Article 70, Clause (1) of Article 71, Clause (4) of Article 72, Article 152, or 153 or to this Clause shall not be passed without the consent of the Conference of Rulers.

(6) In this Article “amendment” includes addition and repeal; and in this Article and in paragraph (a) of Article 2 “State” includes any territory.

Operation of transitional provisions of Malaysia Act

159A. The provisions of Part IV of the Malaysia Act (which contains temporary and transitional provisions in connection with the operation of that Act) shall have effect as if embodied in this Constitution, and shall have effect notwithstanding anything in this Constitution as amended by that Act; and the provisions of this

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Art. 159—(cont.)

Clause (2)

This Clause was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“(2) No amendments to this Constitution shall be made before Parliament is constituted in accordance with Part IV, except such as the Legislative Council may deem necessary to remove any difficulties in the transition from the constitutional arrangements in operation immediately before Merdeka Day to those provided for by this Constitution; but any law made in pursuance of this Clause shall, unless sooner repealed, cease to have effect at the expiration of a period of twelve months beginning with the day on which Parliament first meets.”.

Clause (3)

- a. See Art. 62(3), 68(5) & 161E(1).
- b. The words “and a Bill for making any amendment to a law passed under Clause (4) of Article 10” were inserted by Act A30, subsection 7(1), in force from 10-03-1971.

Clause (4)(a)

The words “Part III of the Second or to the” substituted for the words “the Second” by Act 26/1963, paragraph 24(1)(b), in force from 16-09-1963.

Clause (4)(bb)

- a. Added by Act 14/1962, section 24, in force from 31-08-1957.
- b. The words “subject to Article 161E” were inserted by Act 26/1963, section 70, in force from 16-09-1963.
- c. See Art. 161E(1).

Clause (4)(c)

The words “incidental to or consequential on the repeal of a law made under Clause (2) or” were deleted after the words “any amendment” by Act A31, paragraph 7(a), in force from 24-03-1971.

Clause (5)

The words “Clause (4) of Article 10, any law passed thereunder, the provisions of Part III,” the words “63(4)”, the words “72(4), 152,” and the words “or to this Clause” were inserted by Act A30, subsection 7(2), in force from 10-03-1971.

Clause (6)

- a. The words “and ‘State’ includes any territory” were added by Act 14/1962, section 24, in force from 31-08-1957.
- b. The words “repeal; and in this Article and in Article 2(a) ‘State’ includes any territory” substituted for the words “repeal and ‘State’ includes any territory” by Act A31, paragraph 7(b), in force from 24-03-1971.

Art. 159A

1. Added by Act 26/1963, section 71, in force from 16-09-1963.
2. The words “Articles 159 and 161E” substituted for the words “Articles 159, 161E and 161H” by Act 59/1966, section 2, in force from 19-09-1966.

Constitution, and in particular Clause (1) of Article 4 and Articles 159 and 161E shall have effect in relation thereto accordingly.

Interpretation

160. (1) The Interpretation and General Clauses Ordinance 1948 [*M.U. 7 of 1948*], as in force immediately before Merdeka Day shall, to the extent specified in the Eleventh Schedule, apply for the interpretation of this Constitution as it applies for the interpretation of any written law within the meaning of that Ordinance, but with the substitution of references to the Yang di-Pertuan Agong for references to the High Commissioner.

(2) In this Constitution, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say—

“aborigine” means an aborigine of the Malay Peninsula;

“Act of Parliament” means a law made by Parliament;

“Attorney General” means the Attorney General of the Federation;

“borrow” includes the raising of money by the grant of annuities or by entering into any arrangement requiring the payment before the due date of any taxes, rates, royalties, fees or any other payments or by entering into any agreement whereby the Government has to repay or refund any benefits that it has enjoyed under that agreement, and “loan” shall be construed accordingly;

“casual vacancy” means a vacancy arising in the House of Representatives or a Legislative Assembly otherwise than by a dissolution of Parliament or of the Assembly;

“Chief Minister” and “Menteri Besar” both mean the president, by whatever style known, of the Executive Council in a State;

“citizen” means a citizen of the Federation;

“Civil List” means the provision made for the maintenance of the Yang di-Pertuan Agong, his Consort, a Ruler or Yang di-Pertua Negeri out of public funds;

“Commonwealth country” means any country recognized by the Yang di-Pertuan Agong to be a Commonwealth country; and “part of the Commonwealth” means any Commonwealth country, any colony, protectorate or protected state or any other territory administered by the Government of any Commonwealth country;